

NEW YORK SUPREME COURT
COUNTY OF NEW YORK

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ERIC CONRAD, as Administrator of the Estate of
Garry J. Conrad,

Plaintiff,

- against -

THE CITY OF NEW YORK, a municipal entity;
NYPD Officer JOHN DOE #1; NYPD Sergeant
JOHN DOE #2; and JOHN and JANE DOES # 3, 4,
5, etc.,

Defendants.

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VERIFIED COMPLAINT

JURY TRIAL

Plaintiff ERIC CONRAD, as Administrator of the Estate of Garry J. Conrad, by his attorneys, Beldock Levine & Hoffman LLP, as and for the Complaint, alleges as follows:

PRELIMINARY STATEMENT

1. This action is brought by the Estate of Garry J. Conrad who was shot and killed by New York City Police Department ("NYPD") officers on May 18, 2016, at 49th Street and Eighth Avenue in Manhattan.

2. Mr. Conrad, who worked as a stagehand at a number of Broadway shows in New York City, was shot nine times after an alleged verbal disagreement with employees at a grocery store and, thereafter, NYPD officers.

3. After finally obtaining the autopsy report, the family learned that the Mr. Conrad had been shot while on or near the ground, with two shots hitting him in the back.

4. Mr. Conrad's family members, residents of Massachusetts, were not present at the time he was killed and made immediate efforts to learn about the events that led to his death.

5. Aside from the autopsy report, little else has been provided to Mr. Conrad's family, who have fought for a year to obtain police reports, surveillance recordings, the names of the officers involved and other factual information documenting the circumstances of Mr. Conrad's death. They have been denied such information at every juncture.

6. Mr. Conrad's estate now seeks redress pursuant to New York State law for the injuries caused by the conduct of the officers involved.

7. Plaintiff seeks (i) compensatory damages for wrongful death, physical injury, psychological and emotional distress, and financial loss caused by the illegal actions of the defendants; (ii) punitive damages to deter such intentional or reckless deviations from well-settled law; and (iii) such other and further relief, including costs and attorneys fees, as this Court deems equitable and just.

JURISDICTION AND VENUE

8. This action is brought for violations of Mr. Conrad's rights under New York State common law.

9. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

10. Pursuant to CPLR §§ 503 and 504, venue is proper in New York County because it is the county in which Mr. Conrad resided and where the events giving rise to this action took place.

COMPLIANCE WITH NEW YORK GENERAL MUNICIPAL LAW

11. Plaintiff served a Notice of Claim upon the City of New York on August 9, 2016, within ninety days of the events giving rise to the claims contained therein.

12. On February 13, 2017, Plaintiff ERIC CONRAD, as Administrator of the Estate

of Garry J. Conrad, appeared for an examination pursuant to § 50-h of New York's General Municipal Law.

13. More than thirty days have elapsed since Plaintiff served his Notice of Claim and the City has not offered adjustment or payment thereof.

JURY DEMAND

14. Plaintiff demands a trial by jury in this action on each and every one of his claims for which jury trial is legally available.

THE PARTIES

Plaintiff

15. Garry J. Conrad was a 46 year old theater stagehand in New York City. At the time of his death on May 18, 2016, he resided at 691 West 193rd Street, New York, New York 10040.

16. ERIC CONRAD, Garry J. Conrad's brother, was appointed by the Surrogate's Court of New York County as the Administrator of Mr. Conrad's Estate for purposes of this litigation. He is a citizen of the United States and of the Commonwealth of Massachusetts and resides in the City of Haverhill in County of Essex.

17. Garry J. Conrad is also survived by his parents, Garry and Janice Conrad, who are the legal distributees of his Estate.

Defendants

18. THE CITY OF NEW YORK (the "City") is a municipal entity created and authorized under the laws of the State of New York.

19. The City is authorized by law to maintain a police department, and does maintain the New York City Police Department ("NYPD") which acts as its agent in the area of law

enforcement and for which it is ultimately responsible. The City assumes the risks incidental to the maintenance of a police force and the employment of police officers and detectives.

20. Defendant NYPD Officer JOHN DOE #1 and NYPD Sergeant JOHN DOE #2 are employees of the NYPD who unlawfully assaulted and battered Mr. Conrad. They are sued in their individual and official capacities as NYPD Police Officers.

21. Defendants JOHN and JANE DOES #3, 4, 5, etc., are NYPD police officers, sergeants, and employees who unlawfully assaulted, battered, and/or failed to prevent the assault and battery on Mr. Conrad, leading to his death.

22. At all times relevant herein, defendants JOHN DOE #1, JOHN DOE #2, and JOHN and JANE DOES #3, 4, 5, etc. have acted under color of state law in the course and scope of their duties and/or functions as agents, employees, and/or officers of the City and/or the NYPD, and incidental to the lawful pursuit of their duties as agents, employees, and/or officers of the City and/or the NYPD.

STATEMENT OF FACTS

Garry J. Conrad

23. Garry J. Conrad was a skilled stagehand in the New York City theater scene. He had approximately 30 years of experience.

24. Mr. Conrad had studied theater technology at Emerson College. He specialized in lighting and, in particular, Vari Lighting systems, which were complex machines that required both technical skills as well as computer programming skills.

25. Mr. Conrad moved to New York in approximately 2008 after working as a stagehand for a number of years in the Boston area.

26. In New York, he worked on Broadway productions such as Mary Poppins,

Chicago, Legally Blonde, and The Phantom of the Opera.

27. Stagehands rarely worked on one Broadway show at a time, and would work as needed at a variety of different theaters.

28. Mr. Conrad was a member of the Local One Union of the International Alliance of Theatrical Stage Employees (I.A.T.S.E.) (hereinafter "Local One").

Mr. Conrad's Death

29. Upon information and belief, early on the morning of May 18, 2016, Mr. Conrad was in Manhattan's Theater district picking up a check and seeking any available work, as was the norm in his field.

30. At approximately 8:30 a.m. on May 18, 2016, Mr. Conrad entered the Food Emporium on West 49th Street and Eighth Avenue in Manhattan.

31. Upon information and belief, Mr. Conrad had a verbal disagreement with an employee of the Food Emporium and was instructed to leave.

32. Upon information and belief, an off-duty, plain-clothed NYPD Officer grabbed Mr. Conrad and escorted him out of the Food Emporium.

33. Upon information and belief, Defendant Officer JOHN DOE #1, Defendant Sergeant JOHN DOE #2, and JOHN and JANE DOES, # 3, 4, 5, etc. were uniformed officers who arrived at the scene.

34. Upon information and belief, a Defendant JOHN DOE officer then tackled Mr. Conrad to the ground.

35. In doing so, upon information and belief, the officer fractured Mr. Conrad's jaw and caused a number of contusions and lacerations to Mr. Conrad's face.

36. Mr. Conrad was restrained on the ground.

37. Upon information and belief, Mr. Conrad attempted to lift himself up from the ground and release himself from the grip of the Defendant officer.

38. Mr. Conrad was then shot nine times.

39. Upon information and belief, Defendant Officer JOHN DOE # 1 shot Mr. Conrad two times, while Defendant Sergeant JOHN DOE #2 shot Mr. Conrad seven times.

40. A knife with a three-inch blade, commonly used by stagehands, was found near the scene, but, upon information and belief, not near Mr. Conrad's body at the time he was shot.

41. On May 19, 2016, the Office of the Chief Medical Examiner of the City of New York (hereinafter "ME's Office") performed an autopsy of Mr. Conrad, finding that the cause of Mr. Conrad's death was from gunshot wounds to his neck and torso.

42. The manner of death was deemed a "homicide (shot by police)."

43. The autopsy indicated that the gunshots that caused Mr. Conrad's death were angled at a downward trajectory, indicating that Mr. Conrad was either on the ground or falling at the time he was shot. At least two gunshot entered Mr. Conrad's back and exited from his front.

44. The autopsy also noted that Mr. Conrad had a fractured jaw and blunt impact injuries of his head and extremities.

45. A toxicology report attached to the autopsy indicated that there were no alcohol or drugs found in Mr. Conrad's system.

The NYPD and DA's Failure to Provide Any Information Regarding Mr. Conrad's Death

46. Since his death, Mr. Conrad's family has repeatedly tried to obtain information regarding the death of their son and brother.

47. On May 20, 2016, Plaintiff, through his attorneys, sent preservation letters to local

businesses operating in the vicinity of Mr. Conrad's death requesting that any and all information be preserved.

48. Plaintiff also secured the services of investigators to canvas the neighbourhood for witnesses and to secure recorded materials from cameras located in the area that might have recorded the events.

49. Plaintiff was unable to obtain any information from any employees or management of these businesses after being told from a number of businesses that the NYPD had confiscated any relevant material, including all recordings from surveillance cameras.

50. On May 26, 2016, a search warrant was executed at Mr. Conrad's apartment. No receipt was left for the family to inform them of nature of any personal items taken from Mr. Conrad's apartment.

51. On June 6, 2016, Plaintiff sought access to the autopsy report. The ME's office informed the family that an investigation was pending and that they were not yet able to release the report.

52. On June 16, 2016, Plaintiff's counsel contacted the Assistant District Attorney (ADA) assigned to the investigation, and requested information regarding the circumstances surrounding Mr. Conrad's death and the subsequent investigation that was being conducted.

53. On June 17, 2016, ADA Matthew Bogdanos responded, but did not provide any information or details regarding the circumstances surrounding Mr. Conrad's death.

54. On June 24, 2016, ADA Bogdanos met with Mr. Conrad's family and counsel but again failed to provide any information regarding the identities of the officers involved, any documents or recorded materials reflecting the factual circumstances of the shooting on grounds that a Grand Jury investigation was to take place.

55. After ADA Bogdanos informed Eric Conrad by phone that the Grand Jury investigation had concluded on February 24, 2017, Plaintiff requested information pursuant to the Freedom of Information Law (FOIL) from the ME's Office, the District Attorney for the County of New York (the "DA"), and the NYPD for information relating to the death of Mr. Conrad.

56. On February 28, 2017, Plaintiff received a letter from ADA Bogdanos informing him that the Grand Jury had concluded its investigation and determined not to pursue charges against the officers who discharged their weapons. No other information was provided.

57. On March 21, 2017, Plaintiff received an official copy of the Report of Autopsy from the Office of the Chief Medical Examiner.

58. The FOIL request to the NYPD was denied.

59. To date, the family has not obtained any other information regarding the death of Mr. Conrad.

FIRST CAUSE OF ACTION
Assault
(against the Individual Defendants)

60. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

61. Defendants without just cause, wilfully and maliciously threatened to use physical force against Mr. Conrad, ultimately causing his death.

62. Defendants committed the foregoing acts intentionally, wilfully, and with malicious disregard for Mr. Conrad's rights, and are therefore liable for punitive damages.

SECOND CAUSE OF ACTION
Battery
(against the Individual Defendants)

63. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

64. Defendants without just cause, wilfully and maliciously used physical force against Mr. Conrad, causing his death.

65. Defendants committed the foregoing acts intentionally, wilfully, and with malicious disregard for Mr. Conrad's rights, and are therefore liable for punitive damages.

THIRD CAUSE OF ACTION
Wrongful Death
(against the Individual Defendants)

66. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

67. The acts of the Defendants, alleged herein, wrongfully caused the death of Garry Conrad.

68. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein alleged.

69. As a consequence, Plaintiff has suffered damages in an amount to be determined at trial.

FOURTH CAUSE OF ACTION
Pain and Suffering
(against the Individual Defendants)

70. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

71. The acts of the Defendants, alleged herein, wrongfully caused and permitted Mr.

Conrad to suffer physical, mental, and emotion pain, continuing until his death.

72. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein alleged.

73. After being shot a number of time, Mr. Conrad remained conscious and endured extreme pain and suffering.

74. As a direct and proximate result of Defendants' deprivations of Mr. Conrad's rights, Mr. Conrad's distributees have suffered damages in an amount to be determined at trial.

FIFTH CAUSE OF ACTION
Respondeat Superior
(against the CITY OF NEW YORK)

75. Plaintiffs reallege and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

76. At all relevant times, Defendant Officer JOHN DOE #1, Defendant Sergeant JOHN DOE #2, and Defendant Officers JOHN and JANE DOES # 3, 4, 5, etc. were employees of the City and were acting within the scope of their employment.

77. The CITY OF NEW YORK is therefore vicariously liable under the doctrine of *respondeat superior* for the actions of Defendant Officer JOHN DOE #1, Defendant Sergeant JOHN DOE #2, and Defendant Officers JOHN and JANE DOES # 3, 4, 5, etc. set forth herein.

DEMAND FOR RELIEF

WHEREFORE, Plaintiffs demand the following relief against the defendants, jointly and severally:

- (a) compensatory damages in an amount just and reasonable and in conformity with the evidence at trial;
- (b) punitive damages against the individual defendants;
- (c) attorneys fees;

- (d) the costs and disbursements of this action;
- (e) interest; and
- (f) such other and further relief as this Court deems just and proper.

Dated: New York, New York
May 17, 2017

BELDOCK LEVINE & HOFFMAN LLP

By: 
Karen Dippold, Esq.
Luna Droubi, Esq.
99 Park Avenue, PH/26th Floor
New York, New York 10016
(212) 490-0400

Attorneys for Plaintiff

VERIFICATION

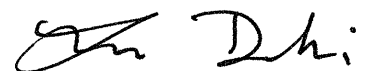
STATE OF NEW YORK)
 : ss.:
COUNTY OF NEW YORK)

I, Karen Dippold, being duly sworn, state:

I am the attorney for the plaintiff in this action. The foregoing Complaint is true to my knowledge except as to those matters therein stated on information and belief and as to those matters I believe them to be true. Pursuant to CPLR § 3020(d)(3), the verification is not made by Plaintiff Eric Conrad, as Administrator for the Estate of Garry J. Conrad, because he is not in the county where I have my office.


Karen Dippold

Sworn to before me this 17th
day of May 2017



Notary Public

LUNA DROUBI
Notary Public, State of New York
No. 02DR6322468
Qualified in New York County
Commission Expires April 6, 2019